

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2101246

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: ELIZABETH VARGAS

vs.

DEFENDANT: ANAHIT
GHANBARZADEH ET AL.

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

Cross-Defendant Pius Josphe's ("Joseph") motion to compel arbitration is denied.

FACTUAL AND PROCEDURAL BACKGROUND

This case has been settled for two and a half years. It remains unresolved because of a dispute regarding a lien filed by prior attorney Joseph.

Joseph was the attorney for Plaintiff Elizabeth Vargas ("Vargus") in her action against Defendants Anahit and Ahmed Ghanbarzadeh ("Ghanbarzadeh"). Following settlement negotiations, Joseph filed a motion to be relieved of counsel and on November 8, 2023, the court relieved him as counsel. The following day, on November 9, 2023, Joseph filed an attorney lien. Without counsel, Plaintiff later proceeded to a settlement conference in January 2024 and at that time, she settled the matter for an amount in excess of what was previously negotiated with counsel. Joseph asserts he is entitled 33% of her total settlement amount, or \$36,755.39. He claims he is entitled to compensation for 82.4 hours of work, and costs. Vargas disputes he is owed any fees.

On March 13, 2025, Joseph filed a declaration asserting that the fees in dispute should be interpleaded and set aside subject to dispute arbitration, or released to him. However, there is no evidence that Joseph made any attempts to proceed with arbitration. On October 5, 2025, the Court granted Ghanbarzadeh's motion to file a cross-complaint in interpleader and ordered that \$42,233.88 in undistributed settlement funds be deposited with the court. Joseph now moves to compel arbitration.

The Arbitration Agreement

The arbitration provision at issue which was attached to Joseph's motion is a heavily redacted document in which the only unredacted sentence reads: "In the event that a dispute arises concerning our fees and/or costs, you and we agree that the matter shall be submitted to a binding arbitration pursuant to Local County Bar Association rules."

There is no evidence that Joseph made attempts to submit this matter to arbitration as part of the Marin County Bar Association. Moreover, although Vargas did not submit a sworn declaration, Vargas has repeatedly stated that she has not been able to submit the matter to fee arbitration because the Marin County Bar Association has suspended its program.

The Court shall take judicial notice of the Marin County Bar Association website's statement that the Marin County Bar Association Program is temporarily suspended. ([Marin County Bar Association | Resources | Fee Arbitration](#)) (A court may take judicial notice of facts, not reasonably in dispute. (Evid. Code §452(h).)

LEGAL STANDARD

A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code of Civ. Proc. § 1281.) "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines" that one of certain exceptions applies. (Code of Civ. Proc. § 1281.2.) An opposing party's refusal of arbitration is a prerequisite to bringing a motion to compel arbitration. (*Allstate Insurance Co. v. Gonzalez* (1995) 38 Cal.App.4th 783,789.) A party who unreasonably delays in demanding arbitration may end up waiving that right to arbitration. (*Id.*)

When the parties to an agreement agree to arbitrate disagreements in a particular forum, that forum remains an integral part of the agreement. (*Alan v. Superior Court* (2003) 111 Cal.App.4th 217, 228.) If the forum is unable to hear the dispute, the court lacks authority to appoint a different arbitration and the petition to compel must be denied. (*Martinez v. Master Protection Corp.* (2004) 118 Cal.App.4th 107, 120, (finding trial court lacked authority to appoint an arbitrator after arbitration agreement required that arbitration agreement be conducted pursuant to AAA rules and AAA refused to conduct arbitration.)

ANALYSIS

There has been no showing by Joseph that he has attempted to initiate arbitration, which is a prerequisite to this motion. To the contrary, it appears that Joseph placed his lien on the funds in this case in 2023, and then sat on the dispute. For more than two and a half years, the parties have been unable to finalize the settlement funds because of the lien and there is no evidence that Joseph made any attempts to ask for, or otherwise place the matter in arbitration. A protracted delay in bringing a matter to arbitration may constitute a waiver of any demand for arbitration. (*Allstate Insurance Co. v. Gonzalez* supra 38 Cal.App.4th 783, 793 (citing to *Spear v. California State Auto Assn.* 2 Cal.4th 1035, 1043.)

Moreover, the Marin County Bar Association, which is the forum designated in the unredacted version of the agreement is unable to hear the dispute, which frustrates the thrust of

the agreement. The court cannot compel arbitration in a forum other than what was specified in the agreement.

In light of the above, the Court denies Joseph's motion to compel arbitration.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/0826 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2301381

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: JOHN MCNEILLY ET AL.	
vs.	
DEFENDANT: FCA US, LLC, ET AL.	

NATURE OF PROCEEDINGS: MOTION – COMPEL – SUPPLEMENTAL

RULING

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0001619

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: DUSTIN PIPER ET AL.

vs.

DEFENDANT: KEVIN SILVA ET AL.

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

Defendants Kevin and Patricia Silva’s (“the Silvas”) petition to compel arbitration is DENIED.
(Code Civ. Proc., § 1281.2,¹ subd. (c).)

BACKGROUND

This is a real estate fraud matter. Plaintiffs Dustin Piper and Katerina Schreck (“Plaintiffs”) allege that they own 29 Sais Avenue in San Anselmo, which they purchased from the Silvas. (Second Amended Complaint (“SAC”),² ¶¶ 1-2.) According to the SAC, the property had issues with drainage and water intrusion prior to Plaintiffs’ purchase. (*Id.* at ¶ 15.) As part of the transaction, the Silvas allegedly completed a Transfer Disclosure Statement (“TDS”) in which they stated that they were not aware of “flooding, drainage or grading problems” or “major damage to the property and/or any of the structures from fire, earthquake, floods, or landslides.” (*Id.* at ¶ 17.) The Silvas also allegedly told Plaintiffs that before the Silvas bought the property, they had hired a qualified and licensed expert to inspect the drainage system at the property. (*Id.* at ¶ 18.) The Silvas represented that this professional orally recommended certain changes to the drainage system, and that they followed those recommendations. (*Id.* at ¶ 19.)

Plaintiffs allege that on two occasions in 2021, they experienced significant flooding at the property. (SAC, ¶¶ 20-21). In December 2021, Plaintiffs found a report at the property (the “Report”) they allege was never disclosed to them before their purchase. (*Id.* at ¶ 23.) The Report stated that the company that had done the Silvas’ drainage inspection informed the Silvas that “seepage” would “likely enter the lower living areas during periods of heavy rain.” (*Ibid.*) The Report recommended certain repairs to the property and stated that further investigation would be required to determine the scope of repairs needed to the drainage system. (*Id.* at ¶¶ 24-25.)

¹ All undesignated statutory references are to the Code of Civil Procedure.

² The Silvas’ requests for judicial notice are granted. (Evid. Code, § 452, subd. (d).)

Plaintiffs claim that they experienced more flooding in 2022 and 2023. (SAC, ¶ 27.) In February 2022, they hired a licensed civil engineer to review the drainage conditions at the property. (*Id.* at ¶ 28.) That professional found that the Silvas had not followed the recommendations in the Report, but had “resorted to cheaper, half-measure repairs[,]” and that the drainage system at the property could not handle rain. (*Id.* at ¶ 29.) Plaintiffs allege that it was apparent from these facts that the Silvas did not properly investigate as recommended and did not disclose this omission to Plaintiffs. (*Ibid.*) Plaintiffs’ professionals determined that the drainage system at the property needed a complete overhaul in order to be operational. (*Id.* at ¶ 30.) Plaintiffs allege that the Silvas knew or should have known all of this before Plaintiffs’ purchase. (*Id.* at ¶ 31.)

Plaintiffs also name as defendants Compass II California, Inc. (“Compass”), Christine McArthur, Victoria Love, and Allison Salzer (together, the “Broker Defendants”). McArthur, Love, and Salzer all work for Compass. (SAC, ¶¶ 5-8.) McArthur and Love represented the Silvas in the sale of the property, and Salzer represented Plaintiffs. (*Ibid.*) Plaintiffs allege that McArthur, Love, and Salzer knew or should have known of the issues with the property, failed to conduct a reasonable inspection, and failed to disclose the problems to Plaintiffs. (*Id.* at ¶ 33.)

Plaintiffs assert the following causes of action against both the Silvas and the Broker Defendants: negligent failure to disclose; negligence; statutory failure to make written disclosures when transferring real property; common law failure to make written disclosure when transferring real property; fraudulent concealment/failure to disclose; intentional misrepresentation; and negligent misrepresentation. As to the Silvas only, Plaintiffs also plead breach of contract. As to the Broker Defendants only, Plaintiffs plead negligent hiring/retention; constructive fraud; breach of fiduciary duty; and “statutory violations/negligence per se.”

Before the Court is the Silvas’ petition to compel arbitration.

LEGAL STANDARD

A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (§ 1281.) A written agreement to submit future controversies to arbitration “is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract.” (*Ibid.*) “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines” that one of certain exceptions applies. (§ 1281.2.)

On a motion to compel arbitration, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The burden then shifts to the resisting party to prove by a preponderance of the evidence a ground for denial (e.g., fraud, unconscionability, etc.). (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal.App.4th 754, 758.)

DISCUSSION

The Silvas trace Plaintiffs' agreement to arbitrate this dispute to a form contract the parties executed on July 12, 2020, entitled "California Residential Purchase Agreement and Joint Escrow Instructions." (Petition, Ex. A ("Agreement").) The parties to the Agreement are Plaintiffs and the Silvas. (*Id.* at Ex. A, ¶¶ 1(E), 31-32.) The brokers involved in the transaction were not parties to the Agreement. (*Ibid.*) The Agreement provides that its parties agree "to mediate any dispute or claim arising between them out of this Agreement, or any resulting transaction, before resorting to arbitration or court action[.]" (*Id.* at Ex. A., ¶ 22(A).) The parties further agree "that any dispute or claim in Law or equity arising between them out of this Agreement or any resulting transaction, which is not settled through mediation, shall be decided by neutral, binding arbitration." (*Id.* at Ex. A., ¶ 22(B).) Plaintiffs each signed the Agreement as a whole and also each initialed it at Paragraph 22. (*Id.* at Ex. A, ¶¶ 22, 31.)

Plaintiffs do not dispute that an arbitration agreement exists and embraces all of their claims against the Silvas. Their primary argument³ in opposition to the petition is based on Code of Civil Procedure, section 1281.2.

Code of Civil Procedure, section 1281.2, subdivision (c) gives a court discretion to refuse to require arbitration of a controversy, even where it determines that the parties have in fact agreed to arbitrate it, under certain circumstances. The court's discretion is triggered where "(1) '[a] party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party'; (2) the third-party action 'aris[es] out of the same transaction or series of related transactions'; and (3) 'there is a possibility of conflicting rulings on a common issue of law or fact.' " (*Acquire II, Ltd. v. Colton Real Estate Group* (2013) 213 Cal.App.4th 959, 967-968 [quoting § 1281.2, subd. (c)] [alterations in original].) If the Court decides to exercise its discretion, it has "four options[:]" "(1) 'refuse to enforce the arbitration agreement and . . . order intervention or joinder of all parties in a single action or special proceeding'; (2) 'order intervention or joinder as to all or only certain issues'; (3) 'order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding'; and (4) 'stay arbitration pending the outcome of the court action or special proceeding.' " (*Id.* at p. 968 [quoting § 1281.2].)

Here, both Plaintiffs and the Silvas are parties to a pending court action (this one) also involving nonparties to the Agreement – the Broker Defendants. Plaintiffs' claims against the Broker Defendants plainly arise out of the same transaction or series of related transactions as their claims against the Silvas: the transaction whereby the Silvas sold 29 Sais Avenue to Plaintiffs. The dispositive question before the Court is whether there is "a possibility" that if Plaintiffs were required to arbitrate their claims against the Silvas while their claims against the

³ Beyond their argument based on Code of Civil Procedure, section 1281.2, Plaintiffs argue that the petition should be denied because the Silvas have not presented competent evidence that Plaintiffs are refusing to arbitrate their claims against the Silvas. At the Silvas' request, the Court has judicially noticed all three versions of the complaint in this litigation, all of which name the Silvas as defendants. This is evidence that instead of commencing arbitration proceedings against the Silvas as required by the Agreement, Plaintiffs filed a lawsuit against them in court. Such evidence affirmatively establishes Plaintiffs' refusal to arbitrate their claims against the Silvas. (See *Hyundai Amco America, Inc. v. S3H, Inc.* (2014) 232 Cal.App.4th 572, 577.) Plaintiffs' counsel has also submitted a declaration in which he states that when the Silvas requested that Plaintiffs submit to arbitration, he refused on his clients' behalf. (Sullivan Dec., ¶¶ 11-13.)

Broker Defendants proceeded in court, the arbitrator and the judge or jury could issue conflicting rulings on the same issues of law or fact. (§ 1281.2, subd. (c).)

There is such a possibility in this case. For example, the First Cause of Action (negligent failure to disclose) alleges that both the Silvas and the Broker Defendants failed to disclose to Plaintiffs that the professional who issued the Report had made certain statements about the condition of the drainage system and certain repair recommendations, and also that the Silvas had not followed those recommendations. (SAC, ¶ 48.) Whether the Silvas in fact made the recommended changes to the drainage system will be at issue as to both sets of defendants. If this claim is heard in different forums as to each set of defendants, one forum could conclude that the Silvas made the recommended changes, and the other forum could conclude that they did not. The two forums could also reach different conclusions about the degree of diminution in the value of the property associated with the same condition: the fact that the property allegedly had major undisclosed drainage defects. (*Id.* at ¶ 50.)

The Second Cause of Action, negligence, alleges that both the Silvas and the Broker Defendant breached duties to Plaintiffs. Some of the alleged breaches are the same. For example, Plaintiffs allege that both the Silvas and the Broker Defendants breached their respective duties to Plaintiffs by failing to disclose both the content of the Report and the fact that the Silvas did not follow its recommendations, and also by failing “to prepare an accurate and thorough” TDS. (SAC, ¶¶ 54-55.) Different forums could reach different conclusions about whether the Silvas followed the recommendations in the Report and whether the TDS was accurate. The Silvas either followed the recommendations or not, and the TDS was either accurate or not, so different conclusions on these issues would necessarily be in conflict regardless of which defendant is at issue. Different forums could also reach different conclusions about the degree of damage associated with these alleged breaches. (*Id.* at ¶ 57.) Whether the defendants whose breach is at issue are the Silvas or the Broker Defendants, a breach consisting of the same conduct logically should result in the same damages. A conclusion that the Silvas’ failure to provide an accurate TDS caused X in damages would conflict with a conclusion that the Broker Defendants’ failure to do the same thing caused Y in damages. Similar considerations apply to the Fifth Cause of Action, which alleges that all defendants failed to provide Plaintiffs with an accurate TDS. (*Id.* at ¶ 73.)

The Eighth Cause of Action, intentional misrepresentation, alleges that both the Silvas and the Broker Defendants falsely represented that the property’s drainage system was in good condition. (SAC, ¶ 89.) If Plaintiffs’ claims against the Silvas and the Broker Defendants were heard in different forums, one forum might agree with Plaintiffs that the drainage system was in bad condition while the other forum concluded that the same drainage system was fully functional.

The Court does not purport to describe all of the potentially conflicting rulings that could issue if Plaintiffs’ claims against the Silvas are heard in a different forum than the one that hears their claims against the Broker Defendants. There is more potential for conflict than the Court has described above.

“[T]here is a possibility of conflicting rulings on a common issue of law or fact” if Plaintiffs’ claims against the Silvas are sent to arbitration and their claims against the Broker Defendants proceed in court. (§ 1281.2, subd. (c).) The Court has discretion not to order Plaintiffs and the

Silvas to arbitrate their dispute notwithstanding their arbitration agreement (*ibid.*), and will do so, as this appears to be the kind of case for which Section 1281.2(c) was designed. (See *Mount Diablo Medical Center v. Health Net of California, Inc.* (2022) 101 Cal.App.4th 711, 726 [“Section 1281.2(c) addresses the peculiar situation that arises when a controversy also affects claims by or against other parties not bound by the arbitration agreement. The California provision giv[es] the court discretion not to enforce the arbitration agreement under such circumstances [] in order to avoid potential inconsistency in outcome as well as duplication of effort[.]”].)

The Silvas argue that instead of declining to enforce the arbitration agreement, the Court should order Plaintiffs to arbitrate their claims against the Silvas and stay Plaintiffs’ litigation against the Broker Defendants pending the outcome of the arbitration proceeding. (See § 1281.2.) Based on the complaint, Plaintiffs’ claims against both the Silvas and the Broker Defendants are going to rely largely upon the same evidence. Under those circumstances, it would not be efficient for the claims against these two sets of defendants to proceed in different forums.

The Court exercises its discretion to “refuse to enforce the arbitration agreement[.]” (§ 1281.2.) It need not “order intervention or joinder of all parties in a single action or proceeding” (*ibid.*) because both the Silvas and the Broker Defendants are already joined in this action.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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Meeting ID: 161 548 7764

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002589

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: JYOTI ELIAS

and

DEFENDANT: BETTER ROOTER, INC.,
ET AL.

NATURE OF PROCEEDINGS: GOOD FAITH SETTLEMENT

RULING

Defendants 4Bach, LP and HB Bona LLC (“Settling Defendants”) filed a motion for good faith settlement and for an order barring any further complaints or cross-complaint against them for implied indemnity, equitable indemnity or contribution . A notice of the motion was served on all parties and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

Settling Defendants’ motion is, therefore, granted.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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Meeting ID: 161 548 7764

Passcode: 502070

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006481

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: DIRK AGUILAR

vs.

DEFENDANT: JUAN ANON ET AL.

NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

This matter concerns Plaintiff's motion to compel Defendants Juan Anon, Nataliya Anon, and Maluk, LLC to provide further responses to Form Interrogatories, Special Interrogatories, and Requests for Production. A discovery facilitator was appointed, but on April 22, 2026, the parties requested another facilitator due to conflicts. On May 13, 2026, the Court continued the motion to compel to July 8, 2026. On May 26, 2026, Discovery Facilitator Laurel Halbany was appointed to assist the parties.

Pursuant to local rule MCR 2.13, the parties were ordered to file a Declaration of Non-Resolution if the matter did not resolve. No Facilitator report was received and neither party filed a Declaration of Non-Resolution. The Court, therefore, assumes that the matter has revolved. If the matter did not resolve after facilitation, either party may place the matter back on calendar by filing a Declaration of Non-Resolution per MCR 2.13H and by appearing ex parte to reschedule the hearing.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006481

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: WELLS FRARGO BANK,
N.A.

vs.

DEFENDANT: GARY SATTIN, AN
INDIVIDUAL

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

The unopposed motion for summary judgment by plaintiff Wells Fargo (“Plaintiff”) is GRANTED. (Code Civ. Proc., § 437c, subds. (c) and (p)(1).) Plaintiff has met its burden showing no triable issues of material fact exist as to any of the alleged causes of action.

Facts

Plaintiff filed this action on December 2, 2025, against defendant Gary Sattin (“Defendant”) alleging a cause of action for breach of contract.

Defendant applied to Plaintiff for a credit card account and entered into a written agreement with Plaintiff to be bound by the terms and conditions set forth in the Cardmember Agreement, including that use of the issued card constituted acceptance of the agreement. (Plaintiff’s Separate Statement of Undisputed Material Facts (“SS”) Nos. 1-3.) Defendant used the credit card, making charges and payments, and incurred a balance. (SS Nos. 6.) Plaintiff sent Defendant monthly statements for each billing period. (SS No. 7.) There is no record of Defendant asserting an objection to the amount of the balance due and owing on the monthly statements that were provided to the Defendant or any active lawsuits for unresolved disputes on this account. (SS Nos. 9-10.)

The last payment applied to the account or transaction made by Defendant was on December 2, 2024. (SS No. 11.) Thereafter, no further payments were made by the Defendant and therefore, under the terms of the Cardmember Agreement, Defendant was in default. (SS No. 12.) Defendant owes Plaintiff \$20,076.88 on the principal balance, which remains unpaid. (SS No. 13.) Defendant has admitted these facts in response to Plaintiff’s Request for Admissions. (SS No. 15.)

Standard for Summary Judgment

A plaintiff moving for summary judgment meets his or her burden of proof by showing there is no defense to each cause of action by proving each element of the cause of action. (Code Civ. Proc., § 437c(p)(1); see also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 [“summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by defendant as well as prove each element of his own cause of action. . . . All that the plaintiff need do is to ‘prove [] each element of the cause of action’ ”].) Once a plaintiff meets this burden, the burden shifts to defendant “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c(p)(1).)

Discussion

Plaintiff claims it is entitled to summary judgment against Defendant on the grounds that there is no defense to this action. Plaintiff alleges a breach of contract against Defendant.

The elements of a breach of contract cause of action are: (1) the existence of a contract; (2) the plaintiff's performance or excuse for nonperformance of the contract; (3) defendant's breach; and (4) damage to plaintiff resulting from the breach. (*State Compensation Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 449 (“*ReadyLink*”).)

Here, Plaintiff proffers evidence of the agreement for the credit card, that Plaintiff performed its obligation under the terms of the agreement by extending funds to Defendant for various goods, services, and cash advances, that Defendant failed to honor the obligations under the terms of the credit card agreement by failing to pay the sums owed to Plaintiff, and that Plaintiff is owed a sum certain in the amount of \$20,076.88. (SS Nos. 1-15.)

The Court finds that Plaintiff has met its burden establishing each element of its cause of action for breach of contract. (SS No. 1-15.) Without controverting evidence, the Court grants Plaintiff's motion for summary judgment.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008456

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: TOWN OF FAIRFAX

vs.

DEFENDANT: GEORGE W. HOLLISTER,
ET AL.

NATURE OF PROCEEDINGS: MOTION – OTHER: PREJUDGMENT POSSESSION

RULING

Town of Fairfax filed a motion for prejudgment possession to acquire reversionary rights in properties identified as the Hollister Parcel and the Cascade Parcel. All parties were served and in fact, default has been requested and entered as to all defendant parties. Additionally, there has been no opposition to this motion. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

For these reasons, the court shall grant Town of Fairfax's motion and sign the proposed judgment in condemnation.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008602

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: ROBBIE POWELSON

vs.

DEFENDANT: MARIN COUNTY SHERIFF
CIVILIAN OVERSIGHT COMMISSION ET
AL.

NATURE OF PROCEEDINGS: 1) DEMURRER 2) MOTION – STRIKE

RULING

Defendants County of Marin (“County”), erroneously also sued as Marin County Sheriff Civilian Oversight Commission (“Commission”) and Linn Walsh’s (“Walsh”) (collectively “Defendants”) Demurrer to the First Amended Complaint (“FAC”) is SUSTAINED in part, as to the First, Second and Third causes of action, with leave to amend. The Demurrer to portions of the Prayer is OVERRULED.

Defendants’ Motion to Strike is GRANTED with leave to amend.

BACKGROUND

Plaintiff initiated this action through filing a “Complaint for Violations of 42 USC § 1983 and Verified Petition for Writ of Mandate For Compliance with the California Public Records Act” on December 23, 2025 (“Complaint”). (RJN No. 4; Complaint, See Berg Decl., Exh. D) Plaintiff’s Complaint alleged that on December 8, 2025, he submitted a complaint and related materials to the Commission regarding an enforcement action involving Deputy Michael Thompson and Binford road resident, Sean Dering (“Dering Complaint”). (Compl., ¶ 6.) Dering had a lawsuit pending against Deputy Thompson at the time. (*Id.*) On December, 8, 2025, Plaintiff emailed Walsh and requested she forward his Dering Complaint to the Commission and alleges Walsh refused. (*Id.*, ¶7.) The Commission met on December 9 or 10, 2025 and Plaintiff attended that meeting. (Compl., ¶ 8; Berg Decl., Ex. D.) According to Plaintiff’s Complaint, he “personally distributed” his Dering Complaint to the Commission members before the meeting, and also spoke with Walsh. (*Id.*) Plaintiff alleges Walsh told him “she would ask County Counsel and then submit the documents” to the Commission members. (*Id.*) Plaintiff asserted that Walsh was not being truthful and that she privately told Commission members she could not distribute Plaintiff’s email with the Dering Complaint to them due to privacy concerns. (*Id.*, ¶ 9.) He alleges Walsh’s “intention was to block communication between

Plaintiff and the Commission” in order to protect her employer, the County, a defendant in Durning’s lawsuit. (*Id.*, ¶ 10.)

Plaintiff’s FAC was filed on or about February 9, 2026, and in it, Plaintiff removed reference to Walsh not being truthful, privately representing to the Commission she would not forward the documents because of privacy concerns, and additionally omitted reference to her responding to Plaintiff that she would check with County Counsel before submitting his documents. (RFJN No. 5; see generally, FAC, Berg Decl., Ex. E.) Plaintiff also omitted reference to the fact that he personally provided the Durning Complaint to the Commission within a day or two of his request that Walsh distribute it to Commission members via email. (*Ibid.*) Plaintiff’s FAC alleges Walsh refused to forward his Durning Complaint to the Commission because it included a lawsuit against the County of Marin, her employer, and that she told the Commission at the December 2025 meeting that Plaintiff’s email was not forwarded because it pertained to a lawsuit. (*Id.*, ¶ 12.) Plaintiff further alleges that Walsh took these actions using malice, oppression, and fraud. (*Id.*, ¶ 16.)

The FAC states two causes of action against defendant Walsh – 1) Violation of 42 USC § 1983 First Amendment and 2) Violation of California Constitution Article 1 § 3. Both causes of action arise out of Walsh’s alleged decision not to forward information submitted by Petitioner to the Commission members. The FAP states a third cause of action against the Commission and County for “Monell Liability.”

REQUESTS FOR JUDICIAL NOTICE

Defendants’ unopposed Requests for Judicial Notice Nos. 1-6 are GRANTED. (Evid. Code, § 452, subds. (a), (b), (d), (h).)

LEGAL STANDARD - DEMURRER

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) As a general rule, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Calif.* (1990) 51 Cal.3d 120, 125.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 317.) The onus is on the plaintiff to articulate the “specifi[c] ways” to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend “only if a potentially effective amendment [is] both apparent and consistent

with the plaintiff's theory of the case.” (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145.)

DISCUSSION – DEMURRER

First Cause of Action - Violation of 42 USC § 1983 First Amendment (Against Walsh)

Defendants demur to Plaintiff's First Cause of Action on the grounds that it fails to state facts sufficient to constitute a cause of action and Walsh is immune from liability pursuant to qualified immunity based upon Plaintiffs failure to allege violation of clearly established law.

To state a claim under section 1983, a plaintiff must allege the violation of a right secured by the Constitution and laws of the United States, and must show that the alleged deprivation was committed by a person acting under color of state law. (*Arce v. Childrens Hosp. Los Angeles* (2012) 211 Cal.App.4th 1455, 1472. Internal citations omitted.) State courts look to federal law to determine what conduct will support an action under section 1983. (*Ibid.*) The threshold inquiry [in analyzing a section 1983 claim] is whether the evidence establishes that appellants have been deprived of a constitutional right. (*Id.*, at pp. 72-73.)

Here, Plaintiff alleges that Walsh's failure to transmit his complaint to the Commission constituted content-based speech restriction and because of this restriction, Plaintiff's advocacy was irreparably harmed because he was unable to petition the COC during a critical period in his advocacy. (FAC, ¶ 20.) However, Plaintiff's original Complaint alleged that he attended the Commission's meeting within one or two days of his request that Walsh distribute his Dering Complaint by email and “personally distributed” it to the Commission members before the meeting. (Compl., ¶ 8.)

The sham pleading doctrine prohibits attempts to avoid defects set forth in a prior complaint by ignoring them. (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 343, as modified (Oct. 2, 2014).) Any omissions or inconsistencies from prior pleadings must be explained, if the pleader fails to do so, the is not bound to accept as true allegations contrary to factual allegations in former pleading in the same case. (*Ibid.*)

Here, Plaintiff has failed to explain this omission. The allegation that he was able to pass out the Dering Complaint to board members in person within a day or two of his request to Walsh to email it out on his behalf, undermines his arguments regarding content based speech restriction. The allegations in the FAC, combined with the Court's consideration of the harmful omitted facts from the original Complaint, are insufficient to state a cause of action.

Furthermore, “government employees generally are shielded by qualified immunity ‘from liability for civil damages insofar as their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known.’ [Citation.] Qualified immunity protects ‘all but the plainly incompetent or those who knowingly violate the law.’” (*Casey N. v. Cnty. of Orange* (2022) 86 Cal.App.5th 1158, 1177.) Here, where it is alleged that Walsh failed to forward his email to Commission members but that he was able to transmit it directly to Commission members within a day or two of his request to Walsh, there has been no prima facie case of conduct violating an established right.

Second Cause of Action - Violation of California Constitution Article I § 3 (Against Walsh)

Defendants demur to Plaintiff's Second Cause of Action on the ground that it fails to state facts sufficient to constitute a cause of action, Walsh is immune from liability pursuant to qualified immunity based upon Plaintiffs failure to allege violation of clearly established law, and Plaintiff has failed to plead compliance with government claim presentation requirements under the Government Claims Act, Government Code section 945.4.

Article I, section 3, subdivision (a) of the state Constitution provides, "The people have the right to instruct their representatives, petition government for redress of grievances, and assemble freely to consult for the common good." (*Chorn v. Workers' Comp. Appeals Bd.* (2016) 245 Cal.App.4th 1370, 1385, as modified on denial of reh'g (Apr. 20, 2016).) For the reasons stated above, Plaintiff has failed to set forth facts sufficient to establish his right to instruct, petition, assemble, or access to the government or government information was restricted, nor are the facts alleged sufficient to state a prima facie case of conduct violating an established right, justifying Walsh's individual liability.

As to the argument that a government tort claims act claim was required, money damages are not an available remedy for a violation of the right to petition set forth in article I, section 3(a). (*MHC Fin. Ltd. P'ship Two v. City of Santee* (2010) 182 Cal.App.4th 1169, 1188, as modified on denial of reh'g (Apr. 9, 2010).) Therefore, it does not appear that such a claim would be required. This is a moot issue however, in light of the above.

Third Cause of Action – Monell Liability (Against the County and Commission)

Defendants demur to Plaintiff's Third Cause of Action alleging *Monell* liability against the County and the Commission on the grounds that it fails to state facts sufficient to constitute a cause of action and the Commission is not an entity subject to suit.

Monell provides that a governmental entity may only be held liable where the entity causes a constitutional violation. (*Arista v. Cnty. of Riverside* (2018) 29 Cal.App.5th 1051, 1064, as modified on denial of reh'g (Dec. 13, 2018), citing (*Monell v. Department of Social Services of City of New York* (1978) 436 U.S. 658.)) To establish *Monell* liability, a plaintiff must identify the challenged policy, practice, or custom, attribute it to the public entity itself, and show a causal link between the execution of the policy, practice, or custom, and the injury suffered. (*Ibid.*) In addition, plaintiffs must present scienter-like evidence of indifference on the part of a particular policymaker or policymakers. (*Ibid.*) The requirement of producing scienter-like evidence on the part of an official with policymaking authority is consistent with the conclusion that absent the conscious decision or deliberate indifference of some natural person, a [governmental entity], as an abstract entity, cannot be deemed to have engaged in a constitutional violation by virtue of a policy, a custom or failure to train. (*Ibid.*) In the absence of any unconstitutional statute or rule, it is plaintiff's burden to articulate a factual basis that demonstrates considerably more proof than a single incident. (*Ibid.*)

The FAC alleges "Acting under color of state law, the County of Marin and [Commission] had an official policy and custom during the time of the facts alleged in this

complaint of giving plenary power to Linn Walsh to control all public communications from the public to the [Commission].” (FAC, ¶ 27.) However, the FAC also alleges “Ms. Walsh would normally distribute Plaintiff’s documents pursuant to the custom of the [Commission] and County. But, Plaintiff’s documents included a lawsuit against the County of Marin, her primary employer. In order to protect her employer, Ms. Walsh, acting as a final policy maker of the [Commission], spontaneously created a content based restriction of speech for public documents sent to the commission.” (*Id.*, at ¶ 12.)

Here, Plaintiff has not alleged any unconstitutional statute or rule. It is therefore Plaintiff’s burden to articulate a factual basis consisting of more than a single incident. (*Arista, supra*, 29 Cal.App.5th at p. 1064.) Plaintiff has not done so. The only factual basis Plaintiff cites to is one incident where Walsh failed to forward an email. The FAC even acknowledges that Walsh would “normally” distribute the documents pursuant to the “custom” of the Commission and County.

For these reasons, the Third Cause of Action also fails to allege facts sufficient to state a cause of action.

Relief Sought in Prayer

Objections to the prayer of a complaint cannot be taken by demurrer. (5 Witkin, Cal. Proc. (6th ed. 2026) Plead, § 956; See also *Grisingher v. Shaeffer* (1938) 25 Cal.App.2d 5, 9.) Accordingly, the demurrer to portions of the prayer is OVERRULED.

For these reasons, the Demurrer to the FAC is SUSTAINED in part, as to the First, Second and Third causes of action, with leave to amend.

LEGAL STANDARD – MOTION TO STRIKE

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.) “When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.” (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.)

DISCUSSION – MOTION TO STRIKE

The Motion to Strike seeks to strike allegations in Plaintiff’s FAC pertaining to Plaintiff’s request and prayer for punitive damages. The motion is made on the grounds that Plaintiff’s FAC contains irrelevant, false, or improper matter, and/or is not drawn in conformity with laws, local rules, or order of court, and accordingly, paragraph 16 and subparagraph D in the prayer for relief should be stricken.

The County

Punitive damages are not recoverable from public entities. (Gov. Code, § 818.)

Walsh

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) “Malice” is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) Despicable conduct means behavior that is “vile,” “base,” or contemptible” and that would be “looked down upon and despised by ordinary decent people,” in addition to willful and conscious disregard for the rights and safety of others. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) “Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate.” [Citation.]” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210.)

Walsh argues Plaintiff fails to state sufficient factual allegations against her to establish malice, or to show she willfully engaged in despicable conduct. This Court agrees. The allegations as they currently stand are insufficient to state a prima facie claim for punitive damages. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63 [A motion to strike punitive damages is properly granted where a plaintiff does not state a prima facie claim for punitive damages, including facts showing that defendant is guilty of oppression, fraud or malice].)

The Motion to Strike is therefore GRANTED with leave to amend.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009514

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: SAEED GHAFOORI ET AL.

vs.

DEFENDANT: BANK OF AMERICA
HOME LOANS ET AL.

NATURE OF PROCEEDINGS: MOTION – OTHER: TO EXPUNGE LIS PENDENS

RULING

Defendants Bank of America Home Loans; Bank of America, N.A., Successor By Merger to Bank of America Home Loan Servicing, Bank of New York Mellon; CWALT, Inc.; and Mortgage Electronic Registration Systems, Inc. (collectively “Defendants”) Motion for an Order Expunging the Lis Pendens recorded by plaintiffs Saeed (Paul) Ghafoori and Gissou Beykpour Ghafoori (collectively “Plaintiffs”) against the real property commonly known as 11 Sky Mill Road, Mill Valley, California 94941 is hereby GRANTED.

REQUEST FOR JUDICIAL NOTICE

Defendants’ Requests for Judicial Notice Nos. 1-8 are GRANTED. (Evid. Code, § 452, subds. (d), (h).)

DEFENDANTS’ STATEMENT OF PROCEDURAL HISTORY

Defendants submit the following facts in support of their Motion: In November 2005, Plaintiffs obtained a loan in the amount of \$2,555,000.00 from Countrywide Bank. (See RFJN, No. 1.) On July 5, 2012, an Assignment of Deed of Trust was recorded, showing that the Deed of Trust had been assigned to Bank of America, N.A. (“BANA”). (See RFJN, No. 2.) BANA currently owns and services the loan.

Plaintiffs fell behind on their mortgage obligations, and a Notice of Default was then recorded on December 5, 2016. (See RFJN, No. 3.) Rather than cure the default, Plaintiffs filed a lawsuit on February 14, 2017, claiming that the loan had been improperly securitized, although no securitization had occurred, and the facts showed that BANA owned the loan. Plaintiffs’ Complaint named 16 defendants – the vast majority of which never had any interest in the loan – including the Defendants in this action. After dismissing a number of the defendants, Plaintiffs and Defendants mediated the prior lawsuit, culminating in a settlement agreement executed by

Plaintiffs on April 18, 2019. (See RFJN, Nos. 1, 8.) The settlement agreement stated that a Notice of Rescission of the Notice of Default would be recorded, and that Defendants would refrain from recording a new Notice of Default until August 1, 2019. (See RFJN, No. 1; Ex. A, ¶ 1(C).) Plaintiffs expressly agreed that such an instrument may be recorded on that date. (*Ibid.*) In the agreement, Plaintiffs also agreed that they would take no action to contest any foreclosure activities by Defendants following August 1, 2019. (*Id.*, ¶ 1(D).)

A Notice of Rescissions of Notice of Default was recorded on May 2, 2019. (See RFJN, No. 4.) A subsequent Notice of Default was then recorded on September 5, 2019. (See RFJN, No. 5.)

In October 2019, Plaintiffs filed a lawsuit against Defendants, alleging that Defendants breached the terms of the settlement agreement by informing a prospective purchaser that the property was going into foreclosure, thereby jeopardizing Plaintiffs' agreement to sell the property. (See RFJN, No. 7.) On December 11 and 21, 2020, Plaintiffs sat for their respective depositions, during which each testified that they had no reason to believe that Defendants actually breached the settlement agreement. (Spann Decl., ¶¶ 5-7.) On April 16, 2024, Plaintiffs voluntarily dismissed the 2019 lawsuit without prejudice.

On October 2, 2023, while the 2019 lawsuit was pending, Plaintiff Saeed Ghafoori filed for Chapter 11 bankruptcy. (United States Bankruptcy Court, Northern District of California, case no. 3:23-bk-30665.) On February 22, 2024, the bankruptcy court granted BANA's motion for relief from the automatic stay. The following day, the bankruptcy court dismissed the bankruptcy on Plaintiff's motion.

On March 1, 2024, while the 2019 lawsuit was still pending, Plaintiffs filed a lawsuit against Defendants in the district court, and obtained a temporary restraining order. (United States District Court, Northern District of California, case no. 4:24-cv-1267.) Plaintiffs' 2024 complaint combined the allegations and causes of action from the 2017 and 2019 complaints, the latter which Plaintiffs already testified had no factual basis. On September 13, 2024, the court dismissed the 2024 lawsuit for lack of subject matter jurisdiction.

Four days after the 2024 lawsuit was dismissed, Plaintiff Saeed Ghafoori filed for Chapter 13 bankruptcy on September 17, 2024. (United States Bankruptcy Court, Northern District of California, case no 3:24-bk-30689.) On January 7, 2025, the bankruptcy court dismissed the bankruptcy on Plaintiff's motion.

On May 12, 2025, Plaintiffs filed a lawsuit against Defendants in state court, again alleging that Defendants breached the 2019 settlement agreement, and further alleging that BANA violated the California Homeowners' Bill of Rights. (Marin County Superior Court, Case No. CV0006202.) Plaintiffs immediately moved for a preliminary injunction, which the court denied on August 12, 2025. Shortly thereafter, on December 5, 2025, Plaintiffs filed an ex parte application for a TRO, which was nearly identical to the one filed in this lawsuit. (Spann Decl., ¶ 10.) The court denied Plaintiffs' request for a TRO. (*Id.*) On February 23, 2026, Plaintiffs voluntarily dismissed the 2025 lawsuit

On December 9, 2025, while the 2025 lawsuit was pending, Plaintiff Saeed Ghafoori again filed for Chapter 13 bankruptcy. (United States Bankruptcy Court, Northern District of California, case no. 3:25-bk-31001.) Soon thereafter, BANA filed for relief from the automatic stay, which the court granted on January 23, 2026. (Spann Dec., ¶ 11.) In its order, the bankruptcy court granted BANA in rem relief on the ground that “the filing of the bankruptcy petition was part of a scheme to hinder, delay, or defraud creditors that involved multiple bankruptcies affecting the property and the Court makes a finding that the Debtor was involved in this scheme.” (*Id.*) On February 23, 2026, the bankruptcy court dismissed the bankruptcy on Plaintiff’s motion.

On March 11, 2026, Plaintiffs filed a federal lawsuit, and immediately sought a temporary restraining order, which the court denied on March 16, 2026. (*Id.*, ¶ 13.) In their complaint, Plaintiffs asserted the same theory asserted in their application for a temporary restraining order which was filed – and denied – in state court, as well as allegations pertaining to an alleged breach of the 2019 settlement agreement – which Plaintiffs already testified have no factual basis. On May 6, 2026, Plaintiffs voluntarily dismissed the 2026 district court case. (*Id.*, ¶ 16.)

On March 23, 2026, Plaintiffs filed this lawsuit against Defendants in state court, asserting claims which they previously asserted in the 2026 district court matter. On May 15, 2026, this Court denied Plaintiffs’ ex parte application for a temporary restraining order. Three days later, Plaintiffs recorded a lis pendens on the property. (RFJN No., 7.)

Immediately after this court denied Plaintiffs’ application for a temporary restraining order, Plaintiffs filed a request for a preliminary injunction in the 9th Circuit. (U.S. Circuit Court of Appeals, 9th Circuit, Case No. 26-1671; Spann Decl., ¶ 15.) Plaintiffs’ opening brief was due by April 16, 2026. Plaintiffs, however, failed to file the brief as required. On June 3, 2026, the 9th Circuit dismissed Plaintiffs’ appeal.

Presently before the Court is Defendants’ Motion to Expunge the lis pendens.

LEGAL STANDARD

A notice of pendency of action may be filed when a real property claim is alleged in an action. (Code Civ. Proc., §§ 405.1, 405.2.) A real property claim means the causes of action, if proven, would affect either: (a) title to or the right to possession of specific real property, or (b) the use of an easement identified in the pleading. (Code Civ. Proc., § 405.4.)

A party seeking to remove the notice has two options, either attack the pleading as failing to state a real property claim (Code Civ. Proc., § 405.31), or attack the real property claim as lacking evidentiary merit (Code Civ. Proc., § 405.32).

Under section 405.32, the Court must expunge a lis pendens “if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim.” A motion to expunge on this ground “expressly concerns factual merit” of the plaintiff’s real property claim. (Code Civ. Proc., § 405.32, Code cmt. ¶3.) Unlike a motion on the

first ground, which involves only a demurrer-like review of the pleadings, section 405.32 “is intended ... to require a judicial evaluation of the merits” of a plaintiff’s real property claim. (*Id.*)

When questioning the evidentiary merit of a claim, the claimant who filed the lis pendens has the burden of proof. (Code Civ. Proc., § 405.30.) Thus, that claimant, in opposing the motion to expunge the lis pendens, must demonstrate the following: (1) the action affects title to or right of possession of the real property described in the notice; (2) in so far as the said notice is concerned, the party recording the notice has commenced the action for a proper purpose and in good faith; and (3) the probable validity of the real property claim by a preponderance of the evidence. (*Hunting World, Inc. v. Superior Court* (1994) 22 Cal.App.4th 67, 70; see also Code Civ. Proc., § 405.30, et seq.) Only admissible evidence is permitted on the motion. (*Burger v. Superior Court* (1984) 151 Cal.App.3d 1013, 1019.)

DISCUSSION

Defendants bring this Motion under California Rules of Court, rule 3.1200 et seq., and pursuant to California Code of Civil Procedure section 405.30, et seq., on the ground Plaintiffs have not demonstrated that he has a viable real property claim in this lawsuit, and that the lis pendens represents an improper cloud on title.

There is no question that several of Plaintiffs’ asserted causes of action, if proven, would affect title to specific real property. The question is whether any of these causes of action are supported by evidentiary merit and whether Plaintiffs demonstrated the probable validity of the real property claims by a preponderance of the evidence.

This Court finds that they did not.

Each of Plaintiffs’ real property causes of action rely on either the claim that Defendants’ conduct violated California Civil Code section 2924f(e)(1) (by failing to postpone the sale by 45 days after delivery of a purchase agreement) or failure to timely provide payoff and reinstatement statements. The Court will address each in turn.

Plaintiffs Failed to Comply with California Civil Code section 2924f(e)(1)-(4) – No Postponement was Required

In support of its Motion, Defendants provide the following facts: On October 6, 2025, Plaintiffs sent Defendants’ counsel a letter indicating that they had listed the property for sale, and demanding a 45-day postponement pursuant to California Civil Code section 2924f(e)(1). (Spann Dec., ¶ 8.) In light of the letter, BANA postponed the scheduled October 15, 2025 sale. (*Id.*) On the eve of the continued sale – set for December 1, 2025 – Plaintiffs sent Defendants’ counsel a packet of documents which Plaintiffs claimed to be a purchase agreement wherein the property would be sold for \$3,000,000, and demanding a further postponement. (See Plaintiffs’ Application for a Temporary Restraining Order filed 5/14/26 (“TRO”), Ex. B.) However, the purported purchase agreement did not indicate that it was accepted by a designated escrow agent, but rather stated that Plaintiffs rejected the offer the same date that they purportedly entered into it. (*Id.*, ¶ 34.) Further, Defendants assert that the amount required to pay of BANA’s loan by

December 10, 2025 – and excluding the other liens on the property – was \$4,189,336.30. (Spann Decl., ¶ 8; Ex. D; Passilias Decl., ¶ 2.)

California Civil Code section 2924f(e)(1)-(4) provides:

(1) With respect to residential real property containing no more than four dwelling units that is subject to a power of sale contained in any deed of trust or mortgage, a sale of the property under the power of sale shall not be conducted until the expiration of an additional 45 days following the scheduled date of sale pursuant to subdivision (a) or (c) of Section 2924g if the trustee receives, at least five business days before the scheduled date of sale, from the mortgagor or trustor, by certified mail with the United States Postal Service or by another overnight mail courier service with tracking information that confirms the recipient's signature and the date and time of receipt and delivery, a listing agreement with a California licensed real estate broker to be placed in a publicly available marketing platform for the sale of the property at least five business days before the scheduled date of sale. The provisions of this paragraph shall not be used to postpone the scheduled sale date more than once.

(2) If a scheduled date of sale is postponed pursuant to paragraph (1), the trustor's or mortgagor's right to reinstate the account shall be extended, calculated pursuant to subdivision (e) of Section 2924c based on the new scheduled date of sale.

(3) If a scheduled date of sale has been postponed pursuant to paragraph (1) and the trustee receives, at least five business days before the scheduled date of sale, from the mortgagor or trustor, by certified mail with the United States Postal Service or by another overnight mail courier service with tracking information that confirms the recipient's signature and the date and time of receipt and delivery, a copy of a purchase agreement for the sale of the property at least five business days before the scheduled sale, the trustee shall postpone the scheduled date of sale to a date that is at least 45 days after the date on which the purchase agreement was received by the trustee. The provisions of this paragraph shall not be used to postpone the scheduled sale date more than once.

(4) For purposes of this subdivision, “purchase agreement” means a bona fide and fully executed contract for the sale of the property that is subject to a power of sale with a purchase price amount equal to or greater than the amount of the unpaid balance of all obligations of record secured by the property that includes the name of the buyer, the sales price, the agreed closing date, and acceptance by the designated escrow agent.

Plaintiffs acknowledge in their Opposition that section 2924f requires that a bona fide purchase agreement be for “a purchase price equal or greater than the unpaid balance of all obligations of record secured by the property.” (Oppo. p. 7:22-26.)

Here, the document cited to by Plaintiffs is deficient in a number of ways. It was not equal to or greater than the amount of the unpaid balance of all obligations or record, it was not “fully executed” having been marked as “not accepted,” and no acceptance was marked by the designated escrow agent. (TRO, Ex. B; Spann Decl., ¶ 8; Ex. D; Passilias Decl., ¶ 2.)

For all of these reasons, the purchase agreement relied upon by Plaintiffs was insufficient to trigger the second postponement under Civil Code section 2924f(e)(3).

Because the provided purchase agreement was deficient, BANA refused Plaintiffs’ demand to postpone the sale. On March 18, 2026, following the district court denying Plaintiffs’ request for a temporary restraining order, the property was sold. A trustee’s deed upon sale was then recorded on April 6, 2026. (Spann Decl., ¶ 14.)

Plaintiffs’ own evidence admits that the purchase agreement was for less than the \$4,189,336.30 payoff amount identified by Defendants. (Ghafoori Decl., ¶ 7.) Plaintiffs do not provide any competent evidence challenging the \$4,189,336.30 payoff amount or any evidence demonstrating the purchase agreement contained a purchase price amount equal to or greater than the amount of the unpaid balance of all obligations of record secured by the property. For these reasons they have not shown the probable validity of their real property claim based on this alleged failure to postpone after receipt of a qualifying purchase agreement by a preponderance of the evidence.

Plaintiffs Failed to Show Probably Validity of a Real Property Claim Based on Right of Reinstatement

Plaintiffs also raise rights to reinstatement. (See Oppo. p. 9:10-17.) However, Defendants provide evidence showing that Plaintiffs were provided with payoff and reinstatement statements for the loan on March 3, 2026, but failed to take any action on either. (Spann Decl., ¶ 10, 12.) Plaintiffs’ opposition provides no evidence on this issue, and Plaintiffs have thus failed to meet their burden demonstrating probable validity of a real property claim based on the right of reinstatement.

Defendants’ Motion to Expunge the lis pendens is therefore GRANTED.

Attorney’s Fees and Costs

The prevailing party on a motion to expunge is entitled to reasonable attorneys' fees and costs in making or opposing the motion unless the other party acted with substantial justification or other circumstances exist which would make the imposition of fees unjust. (Code Civ. Proc., § 405.38.)

Defendants seek \$6,300.00 in fees and costs incurred in bringing this Motion and reviewing the Opposition thereto. (Spann Reply Decl., ¶ 4.) It does not appear Plaintiffs acted with substantial justification when they provided no evidence demonstrating that the purchase price complied with the requirements of section 2924f. The Court finds that hourly rate and the

amount of hours spent are both reasonable and ORDERS Plaintiffs to pay to Defendants, fees in the amount of \$6,300 within ten (10) days of the date of this Order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjE0SHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>